

Algorithmic Impact Assessment Results

Version: 0.10.0

Project Details

1. Name of Respondent

Lisa Cove

2. Job Title

Project Lead

3. Department

Employment and Social Development (Department of)

4. Branch

TFWPB

5. Project Title

LMIA Summary of Information

6. Project ID from IT Plan

20240037

7. Project Phase

Implementation

[Points: +0]

8. Project Description

The Robotics Processing Automation(RPA)/AI report will analyze data from multiple systems, including the Labor Market Impact Assessment (LMIA) system, Integrity and Compliance Management System (ICMS), and Tips and Allegations Management System (TAMS). RPA will be used to extract data from the three systems and generate a report using ESDC Virtual Assistant (EVA). The RPA will analyze areas like the Business Number (BN), address of employer, wage being allocated and checking for existing allegations, EVA is being used to enhance the manual file review process by identifying areas that may require further investigation with a summary report.

It will support worker protection by recognizing inconsistencies that could indicate potential concerns. There is no risk score or recommendations being made by the solution.

About the System

9. Please check which of the following capabilities apply to your system.

Text and speech analysis: Analyzing large data sets to recognize, process, and tag text, speech, voice, and make recommendations based on the tagging, Content generation: Analyzing large data sets to categorize, process, triage, personalize, and serve specific content for specific contexts, Process optimization and workflow automation: Analyzing large data sets to identify and anomalies, cluster patterns, predict outcomes or ways to optimize; and automate specific workflows

[Points: +0]

Section 1: Impact Level: 1

Current Score: 28

Raw Score: 28

Mitigation Score: 25

Section 2: Requirements Specific to Impact Level 1

Peer review

None

Gender-based Analysis Plus

None

Notice

None

Human-in-the-loop-for-decisions

Decisions may be rendered without direct human involvement.

Explanation

In addition to any applicable legal requirement, ensure that a meaningful explanation is published for common decision results. The explanation must provide a general description of:

- the role of the system in the decision-making process;
- input data, its source and method of collection;
- the criteria used to evaluate input data and the operations applied to process it;
- the output produced by the system and any relevant information needed to interpret it in the context of the administrative decision; and
- the principal factors behind a decision.

Explanations must also inform clients of relevant recourse options, where appropriate.

Descriptions must be made available in plain language through the Algorithmic Impact Assessment and discoverable via a departmental website.

Training

None

IT and business continuity management

None

Approval for the system to operate

None

Other requirements

The Directive on Automated Decision-Making also includes other requirements that must be met for all impact levels.

tbs-sct.canada.ca/pol/doc-eng.aspx?id=32592

Contact your institution's ATIP office to discuss the requirement for a Privacy Impact Assessment as per the Directive on Privacy Impact Assessment.

Section 3: Questions and Answers

3.1: Impact Questions and Answers

3.1.1: Reasons for Automation

1. What is motivating your team to introduce automation into this decision-making process?

Improve overall quality of decisions, Lower transaction costs of an existing program, Use innovative approaches [Points: +0]

2. What client needs will the system address and how will this system meet them? If possible, describe how client needs have been identified.

The project aims to develop an EVA-generated report to support LMIA and compliance reviews under the Temporary Foreign Worker Program (TFWP) by:

Improving Decision-Making: Helping Program Officers and Integrity Service Investigators identify discrepancies and issues requiring further review.

Reducing Manual Effort: Automating the extraction and organization of relevant data from TFW Program systems and documents

3. Please describe any public benefits the system is expected to have.

The Temporary Foreign Worker (TFW) Program has previously experienced periods of elevated Labour Market Impact Assessment (LMIA) application volumes, driven by employer efforts to address labour and skills shortages across Canada. In response to these recurring demands and need to further strengthen decision making, a need was identified for targeted program officer support to strengthen the program’s capacity and responsiveness. By using technological efficiencies, the Program aims to improve productivity and decision making related to the LMIA process, to ultimately be able to sustain the volume of work and effectively deliver this key service to Canadian employers.

The LMIA Summary of Information Report functions as a structured data compilation system aimed at improving operational efficiency while maintaining human oversight. It will compile the data from three main systems within the Program: Integrity Case Management System (ICMS), Tips and Allegations System (TAMS) and Labour Market Impact Assessment System (LMIA-S).

4. How effective will the system likely be in meeting client needs?

Moderately effective

[Points: +1]

5. Please describe any improvements, benefits, or advantages you expect from using an automated system. This could include relevant program indicators and performance targets.

Key benefit:

Improve productivity and decision making related to the LMIA process

6. Please describe how you will ensure that the system is confined to addressing the client needs identified above.

The solution incorporates specific constraints to ensure only relevant data is extracted and presented for compliance reviews and decision-making:

Targeted Data Extraction: The RPA bot extracts predefined data elements from LMIA/TAMS/ICMS, based on subject-matter expert input.

Prompt-Driven AI Analysis: EVA uses tested prompts—developed with business operations testers—to analyze relevant fields and flag discrepancies or notable data points.

Controlled Scope: Only data aligned with review criteria is extracted, avoiding full records or unrelated information to keep outputs focused and manageable.

While the solution consolidates data more efficiently than manual methods, it does not introduce new or previously unavailable information. It improves accessibility by organizing existing data into structured, contextualized reports.

User-Centered Design: Feedback from staff and testers ensures reports are clear and aligned with current case interpretation practices.

Training and Testing: Program Officers involved in testing validated that outputs are understandable and operationally relevant.

7. Please describe any trade-offs between client interests and program objectives that you have considered during the design of the project.

The solution supports, but does not influence, decision-making. It will be one tool utilized by Program Officer's to guide them to potential concerns. It highlights discrepancies in existing data to assist Program Officers, without making determinations or introducing new information.

Client Impact: The system organizes existing data to support fair and consistent decisions. It does not affect individuals directly, serving only as a tool for review.

Program Objectives: It enhances compliance by reducing manual work and improving consistency, without compromising fairness or integrity.

Oversight: Final decisions remain with trained officers, ensuring transparency and human judgment.

8. Have alternative non-automated processes been considered?

Yes

[Points: +0]

9. If non-automated processes were considered, why was automation identified as the preferred option?

The existing process is fully manual, which may result in significant time consumption and

operational inefficiencies for the program. A decision to explore automation has been initiated, recognizing the potential to streamline workflows, reduce manual effort, and assist productivity.

10. What would be the consequence of not deploying the system?
Service quality is not as high [Points: +0]

3.1.2: Risk Profile

11. Is the project within an area of intense public scrutiny (e.g. because of privacy concerns) and/or frequent litigation?
Yes [Points: +3]

12. Are clients in this line of business particularly vulnerable?
No [Points: +0]

13. Are stakes of the decisions very high?
No [Points: +0]

14. Will this project have major impacts on staff, either in terms of their numbers or their roles?
No [Points: +0]

15. Will the use of the system create or exacerbate barriers for persons with disabilities?
No [Points: +0]

3.1.3: Project Authority

16. Will you require new policy authority for this project?
No [Points: +0]

3.1.4: About the Algorithm

17. The algorithm used will be a (trade) secret
No [Points: +0]

18. The algorithmic process will be difficult to interpret or to explain
No [Points: +0]

3.1.5: About the Decision

19. Please describe the decision(s) that will be automated.
EVA supports Program Officers by extracting and analyzing data to generate reports that highlight discrepancies or potential issues. It does not assign risk scores, make decisions, or determine case outcomes. All outputs are informational and intended to aid, not replace, human judgment.

20. Does the decision pertain to any of the categories below:
Employment (recruitment, hiring, promotion, performance evaluation, monitoring, security clearance) [Points: +1]

3.1.6: Impact Assessment

21. Which of the following best describes the type of automation you are planning?
Partial automation (the system will contribute to administrative decision-making by supporting an officer through assessments, recommendations, intermediate decisions, or other outputs) [Points: +2]

22. Please describe the role of the system in the decision-making process.

The RPA process supports Program Officers by extracting data and EVA analyzes that data to generate reports that highlight discrepancies or potential issues. It does not assign risk scores, make decisions, or determine case outcomes. All outputs are informational and intended to aid, not replace, human judgment.

23. Will the system be making decisions or assessments that require judgement or discretion?

No [Points: +0]

24. Please describe the criteria used to evaluate client data and the operations applied to process it.

The solution does not generate risk scores or recommendations. It produces an informational report that highlights discrepancies or potential issues to support, never replace, Program Officer decision-making. Final decisions remain with officers, helping mitigate automation bias over time.

25. Please describe the output produced by the system and any relevant information needed to interpret it in the context of the administrative decision.

The output does not generate a risk score or make recommendations. Instead, it compiles relevant details from multiple systems and highlights discrepancies, inconsistencies, or potential issues based on predefined data points. The output is designed to support program officers in identifying areas that may warrant closer review but does not classify cases as high- or low-risk, nor does it suggest specific actions. All interpretations and decisions remain with program officers, ensuring that human judgment and contextual analysis guide the review process.

26. Will the system perform an assessment or other operation that would not otherwise be completed by a human?

No [Points: +0]

27. Is the system used by a different part of the organization than the ones who developed it?

Yes [Points: +4]

28. Are the impacts resulting from the decision reversible?

Reversible [Points: +1]

29. How long will impacts from the decision last?

Impacts are most likely to be brief [Points: +1]

30. Please describe why the impacts resulting from the decision are as per selected option above.

The solution does not make determinations of TFW Program misuse—accurate or inaccurate—nor does it render any decisions. It is strictly a decision-support tool that consolidates data and highlights discrepancies or potential issues for further human review. All assessments, including any determination of TFW Program misuse, are made solely by Program Officers based on their professional judgment and established procedures

31. The impacts that the decision will have on the rights or freedoms of individuals will likely be:

Little to no impact [Points: +1]

32. Please describe why the impacts resulting from the decision are as per selected option above.

Temporary foreign workers are not the focus of this report. The solution is designed to review and assess information related to the business or employer, not the individual temporary foreign worker. Its purpose is to identify data discrepancies or inconsistencies in employer-submitted information to support Program Officers in their review of business compliance.

No decisions are made about individual temporary foreign workers, and the report does not evaluate or label workers in any way. This approach helps ensure that the rights and protections of temporary foreign workers are respected, and that any decisions impacting individuals are made solely by human officers, based on a broader context and established procedures.

33. The impacts that the decision will have on the equality, dignity, privacy, and autonomy of individuals will likely be:
Little to no impact [Points: +1]

34. Please describe why the impacts resulting from the decision are as per selected option above.
The report does not impact the temporary foreign workers, it reviews the business.

35. The impacts that the decision will have on the health and well-being of individuals will likely be:
Little to no impact [Points: +1]

36. Please describe why the impacts resulting from the decision are as per selected option above.
No decisions are being made

37. The impacts that the decision will have on the economic interests of individuals will likely be:
Little to no impact [Points: +1]

38. Please describe why the impacts resulting from the decision are as per selected option above.
No decisions are being made

39. The impacts that the decision will have on the ongoing sustainability of an environmental ecosystem, will likely be:
Little to no impact [Points: +1]

40. Please describe why the impacts resulting from the decision are as per selected option above.
Very few resources will be allocated to create this supporting document. Reports will be stored in existing repositories therefore no new resource allocation will be required to sustain

3.1.7: About the Data - Data Source

41. Will the Automated Decision System use personal information as input data?
No [Points: +0]

42. What is the highest security classification of the input data used by the system? (Select one)
Protected B / Protected C [Points: +3]

43. Who controls the data?
Federal government [Points: +1]

44. Will the system use data from multiple different sources?
Yes [Points: +4]

45. Will the system require input data from an Internet- or telephony-connected device? (e.g. Internet of Things, sensor)
No [Points: +0]

46. Will the system interface with other IT systems?
No [Points: +0]

47. Who collected the data used for training the system?
Your institution [Points: +1]

48. Who collected the input data used by the system?
Your institution [Points: +1]

49. Please describe the input data collected and used by the system, its source, and method of collection.

System that will be used will be LMIA, ICMS, TAMS. Data will be collected via bots (RPA). Elements collected will be specific to business information including but not limited to:

Business Number

Address of Business

Business owner

Previous applications of the same business

Business contact information

Business compliance

3.1.8: About the Data - Type of Data

50. Will the system require the analysis of unstructured data to render a recommendation or a decision?
No [Points: +0]

3.2: Mitigation Questions and Answers

3.2.1: Consultations - Have you engaged with any of the following groups?

1. Internal Stakeholders (federal institutions, including the federal public service)
Yes [Points: +1]

2. Which Internal Stakeholders have you engaged?
Data Governance, Legal Services, Digital Policy, Access to Information and Privacy Office, Other (please specify) [Points: +0]

3. Other (please specify)
Privacy Management Division

4. External Stakeholders (groups in other sectors or jurisdictions)
No [Points: +0]

3.2.2: De-Risking and Mitigation Measures - Data Quality

5. Do you have documented processes in place to test datasets against biases and other unexpected outcomes? This could include experience in applying frameworks, methods, guidelines or other assessment tools.
Yes [Points: +2]

6. Is this information publicly available?

No	[Points: +0]
7. Have you developed a process to document how data quality issues were resolved during the design process?	
No	[Points: +0]
8. Is this information publicly available?	
No	[Points: +0]
9. Have you undertaken a Gender Based Analysis Plus of the data?	
No	[Points: +0]
10. Is this information publicly available?	
No	[Points: +0]
11. Have you assigned accountability in your institution for the design, development, maintenance, and improvement of the system?	
Yes	[Points: +2]
12. Do you have a documented process to manage the risk that outdated or unreliable data is used to make an automated decision?	
Yes	[Points: +2]
13. Is this information publicly available?	
No	[Points: +0]
14. Is the data used for this system posted on the Open Government Portal?	
No	[Points: +0]

3.2.3: De-Risking and Mitigation Measures - Procedural Fairness

15. Does the audit trail identify the authority or delegated authority identified in legislation?	
No	[Points: +0]
16. Does the system provide an audit trail that records all the recommendations or decisions made by the system?	
Yes	[Points: +2]
17. Are all key decision points identifiable in the audit trail?	
Yes	[Points: +2]
18. Are all key decision points within the system's logic linked to the relevant legislation, policy or procedure?	
No	[Points: +0]
19. Do you maintain a log detailing all of the changes made to the model and the system?	
Yes	[Points: +2]
20. Does the system's audit trail clearly set out all decision points made by the system?	
Yes	[Points: +1]
21. Can the audit trail generated by the system be used to help generate a notification of the decision (including a statement of reasons or other notification) where required?	
No	[Points: +0]
22. Does the audit trail identify precisely which version of the system was used for each decision it supports?	
No	[Points: +0]
23. Does the audit trail show who the authorized decision-maker is?	

Yes [Points: +1]

24. Is the system able to produce reasons for its decisions or recommendations when required?

Yes [Points: +2]

25. Is there a process in place to grant, monitor, and revoke access permission to the system?

Yes [Points: +1]

26. Is there a mechanism to capture feedback by users of the system?

Yes [Points: +1]

27. Is there a recourse process planned or established for clients that wish to challenge the decision?

No [Points: +0]

28. Does the system enable human override of system decisions?

Yes [Points: +2]

29. Is there a process in place to log the instances when overrides were performed?

Yes [Points: +1]

30. Does the system's audit trail include change control processes to record modifications to the system's operation or performance?

No [Points: +0]

31. Have you prepared a concept case to the Government of Canada Enterprise Architecture Review Board?

No [Points: +0]

3.2.4: De-Risking and Mitigation Measures - Privacy

32. If your system uses or creates personal information, have you undertaken or have you undertaken a Privacy Impact Assessment, or updated an existing one?

No [Points: +0]

33. Have you undertaken other types of privacy assessments for your automation project? Please describe any relevant efforts.

The solution is covered by a privacy risk assessment conducted by ESDC's

Privacy Management Division in accordance with established privacy principles, TBS policies and directives, and the Privacy Act, to ensure that privacy controls and safeguards were well-established, and privacy risks subject to an actionable plan for mitigation.

34. Have you design and build security and privacy into your systems from the concept stage of the project?

Yes [Points: +1]

35. Is the information used within a closed system (i.e. no connections to the Internet, Intranet or any other system)?

No [Points: +0]

36. If the sharing of personal information is involved, has an agreement or arrangement with appropriate safeguards been established?

Yes [Points: +1]

37. Will you de-identify any personal information used or created by the system at any point in the lifecycle?

Yes [Points: +1]

38. Please describe your de-identification method(s).

RPA Bots are preprogrammed to select only specified fields containing business information. EVA will also be programmed to depersonalize any data received.